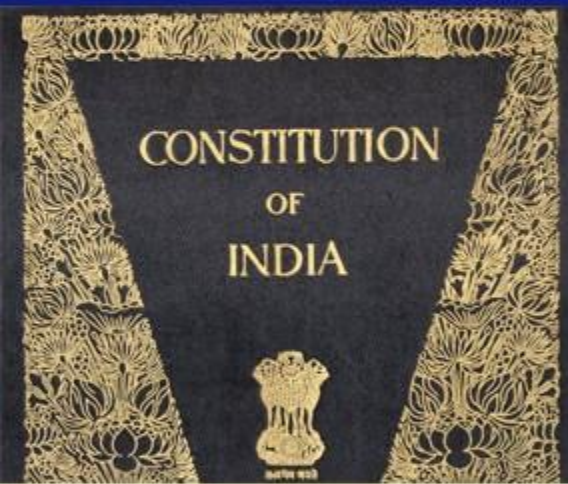


INDIAN POLITY



MODULE - 48

- **DIRECTIVE PRINCIPLES**
CONFLICT BETWEEN RIGHTS AND DIRECTIVES

DIRECTIVE PRINCIPLES OF STATE POLICY

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES



1 The justiciability of Fundamental Rights and non-justiciability of Directive Principles on the one hand and the moral obligation of State to implement Directive Principles (Article 37) on other hand have led to a conflict between the two since the commencement of the Constitution.

2 In the **Champakam Dorairajan case** (1951), the Supreme Court ruled that in case of any conflict between the Fundamental Rights and Directive Principles, the former would prevail.

DIRECTIVE PRINCIPLES OF STATE POLICY

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

3 It declared that the Directive Principles have to conform to and run as subsidiary to the Fundamental Rights. But, it **also held that the Fundamental Rights could be amended by the Parliament by enacting Constitutional Amendment Acts.**

4 As a result, the Parliament made the First Amendment Act (1951), the Fourth Amendment Act (1955) and the Seventeenth Amendment Act (1964) to implement some of the Directives.

5 The above situation underwent a major change in 1967 following the Supreme Court's judgment in the **Golaknath Case (1967).**

6 In that case, the Supreme court ruled that the **Parliament cannot take away or abridge any of the Fundamental Rights**, which are "Sacrosanct" in nature.

***Change of scenario with
Golaknath case***

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WHAT IS THE
CONFLICT?

Non-justiciability of
Directive Principles

vs

Justiciability of Fundamental
Rights and Article 37

Champakam
Dorairajan Case
(1951)

In case of conflict between FR & DPSP
FR PREVAILS

Also held that FR could be amended by
Parliament

Period of 1951 to
1964

1st, 4th, 17th Amendment Acts

Golaknath Case
(1967)

Major
change

Parliament cannot take away any of the
FR and it cannot be amended for
implementation of DPSP

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

Parliament got angry and showed their power through Amendments!!!



7 In other words, the court held that the Fundamental Rights cannot be amended for the implementation of the Directive Principles.

8 The Parliament reacted to the Supreme Court's judgment in the Golaknath Case (1967) by enacting the **24th Amendment Act (1971)** and the **25th Amendment Act (1971)**.

9 The 24th Amendment Act declared that the Parliament has the power to abridge or take away any of the Fundamental Rights by enacting Constitutional Amendment Acts.

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

- 10** The 24th Amendment Act made the following changes:
- Affirmed the power of the Parliament to amend any part of the Constitution including fundamental rights.
 - Made it compulsory for the President to give his assent to a Constitutional Amendment Bill.

- 11** The 25th Amendment Act inserted a new Article 31 C which said:
- Any law made to give effect to the Directive Principles contained in Article 39 b or c cannot be held void on the ground of violation of Article 14, 19.
 - Such a law so made, cannot be challenged in courts of law.

Both 24th and 25th amendment gave huge powers to Parliament.

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES



KB case: “Judicial Review” is a basic feature of the Constitution

The Parliament extended its power further!

12 In the Kesavananda Bharati Case²⁴ (1973), the Supreme Court declared the above **second provision of Article 31 C as unconstitutional** and invalid on the ground that judicial review is a basic feature of the Constitution and hence, cannot be taken away. However, the above first provision of Article 31 C was held to be Constitutional and valid.

13 Later, the 42nd Amendment Act (1976) extended the scope of the above first provision of Article 31C by including within its protection **any law to implement any of the Directive Principles and not merely those specified in Article 39 (b) and (c) .**

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Parliament got enraged and enacted 24th and 25th Amendment Act in 1971.

24th = Parliament has the power to take away FR by Constitutional Amendments
25th = Inserted Article 31 C (Refer Mod 45)

Keshavananda Bharati Case (1973)

Revolutionary Judgement

2nd provision of Article 31 C as unconstitutional and declared any law created by Article 31 C can be put under judicial review as this is a part of basic structure.



42nd CAA, 1976

Extended the scope of 1st provision of Article 31C by including all Directive Principles and not merely those specified in Article 39 (b) and (c)

Interpretation = DPSP > FR

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**Minerva Mills case
(1980)**

Restored
Harmony

This extension of Article 31C was
declared UNCONSTITUTIONAL

DPSP was again made subordinate
to FR except for Article 39 (b) or (c).

INTERPRETATION:

Therefore, the present position is
that FR enjoy supremacy over DPSP.
Indian Constitution is founded on
the bedrock of balance between FR
& DPSP.



CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

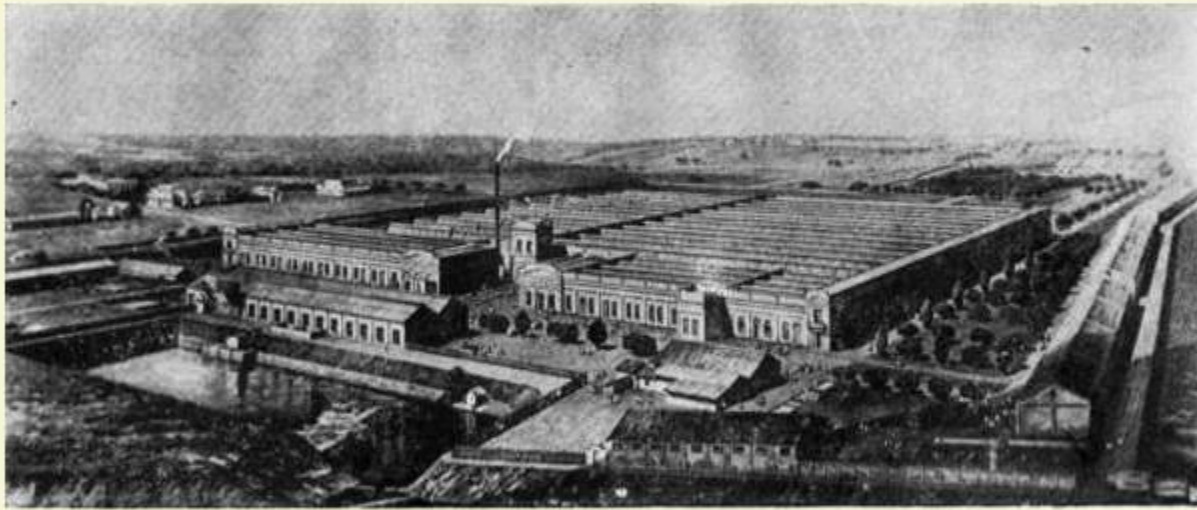
14 In other words, the 42nd Amendment Act accorded the **position of legal primacy and supremacy to the Directive Principles over the Fundamental Rights** conferred by Articles 14, 19.

15 However, this extension was declared as unconstitutional and invalid by the Supreme Court in the **Minerva Mills Case²⁵ (1980)**.

16 It means that the Directive Principles were once again made subordinate to the Fundamental Rights.

17 But the Fundamental Rights conferred by Article 14 and Article 19 were accepted as subordinate to the Directive Principles specified in **Article 39 (b) and (c)**. Further, Article 31 (Right to Property) was abolished by the 44th Amendment Act (1978).

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES



Minerva Mills was a sick industrial firm based in Bangalore and was nationalized by the government in 1974

- 18** In the Minerva Mills case (1980), the Supreme Court also held that the Indian Constitution is founded on the bedrock of the balance between the Fundamental Rights and the Directive Principles.
- 19** They together constitute the core of commitment to social revolution.
- 20** They are like two wheels of chariot, one no less than the other. To give absolute primacy to one over the other is to disturb the harmony of the Constitution.

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

- 21** The goals set out by the Directive Principles have to be achieved without the abrogation of the means provided by the Fundamental Rights.



- 22** Therefore, the present position is that the Fundamental Rights enjoy supremacy over the Directive Principles.

- 23** Yet, this does not mean that the Directive Principles cannot be implemented.

- 24** The Parliament can amend the Fundamental Rights for implementing the Directive Principles, **so long as the amendment does not damage or destroy the basic structure of the Constitution.**

DISTINCTION BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

FUNDAMENTAL RIGHTS

- 1** These are negative as they prohibit the State from doing certain things.
- 2** These are justiciable, that is, they are legally enforceable by the courts in case of their violation.
- 3** They aim at establishing political democracy in the country.
- 4** These have legal sanctions.

DIRECTIVE PRINCIPLES

- 1** These are positive as they require the State to do certain things.
- 2** These are non-justiciable, that is, they are not legally enforceable by the courts for their violation.
- 3** They aim at establishing social and economic democracy in the country.
- 4** These have moral and political sanctions.

DISTINCTION BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

FUNDAMENTAL RIGHTS

- 5 They promote the welfare of the individual. Hence they are personal and individualistic.
- 6 They do not require any legislation for their implementation. They are automatically enforced.
- 7 The courts are bound to declare a law violative of any of the fundamental Rights as unconstitutional and invalid.

DIRECTIVE PRINCIPLES

- 5 They promote the welfare of the community. Hence they are sociitarian and socialistic.
- 6 They **require legislation for their implementation. They are not automatically enforced.**
- 7 The **courts cannot declare a law violative of any of the Directive Principles as unconstitutional and invalid.** However, they can uphold the validity of a law on the ground that it was enacted to give effect to a directive.

DIRECTIVE PRINCIPLES OUTSIDE PART IV

Apart from the Directives included in Part IV, there are some other Directives contained in other Parts of the Constitution. They are:



CLAIMS OF SCs AND STs TO SERVICES

- 1 The claims of the members of the Scheduled Castes and Scheduled Tribes shall be taken into consideration, consistently with maintenance of efficiency of administration, in the making of appointments to services and posts in connection with the affairs of the Union or a State (Article 335 in Part XVI)



INSTRUCTION IN MOTHER TONGUE

- 2 It shall be the endeavour of every State and every local authority within the State to provide **adequate facilities** for instruction in the mother-tongue at the **primary stage of education** to children belonging to **linguistic minority groups** (Article 350 A) in Part XVII.

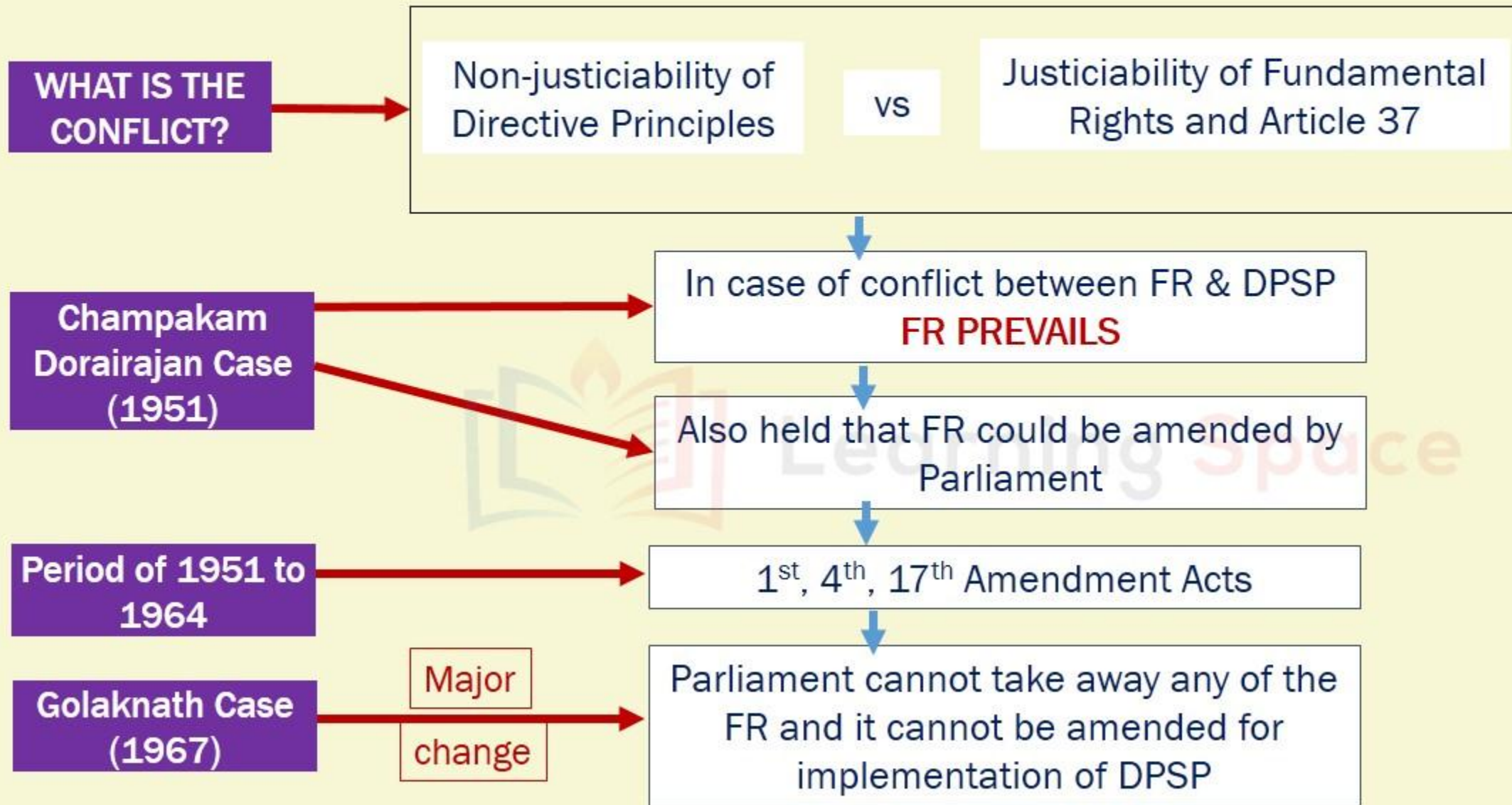
DEVELOPMENT OF THE HINDI LANGUAGE



- 3 It shall be the duty of the Union to promote the spread of the Hindi Language and to develop it so that it may serve as a medium of expression for all the elements of the composite culture of India (Article 351 in Part XVII).

The above Directives are also non-justiciable in nature. However, they are also given equal importance and attention by the judiciary on the ground that all parts of the Constitution must be read together.

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